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Provision of December 7, 2023
Register of provisions
n. 584 of December 7, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code"), as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation
of national legislation to the provisions of
Regulation (EU) 2016/679";

HAVING REGARD to the report of the Local Police of the Municipality of
Ancona – Commercial Police Section – which reports on a control carried out on
June 10, 2022, at the public establishment named
"Mushtaq Rubina Kebabish" located in Ancona, Via Marconi
51/A, managed by the sole proprietorship Mushtaq
Rubina, which confirmed the presence of a
regularly functioning video surveillance system and the absence of suitable
informative signs regarding the presence of cameras;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. The report received and the initiation of the
procedure.

With a note dated June 28, 2022, the Local Police of the Municipality of
Ancona – Commercial Police Section – transmitted to this Authority the report of the control
carried out on June 10, 2022, at the public
establishment named "Mushtaq Rubina Kebabish" located
in Ancona, Via Marconi 51/A, which confirmed
the presence of a regularly functioning video surveillance
system and the absence of suitable
informative signs regarding the presence of cameras.
Therefore, the Office, with a note dated October 25, 2022 (prot.
n. 58400), proceeded to notify the initiation
of the sanctioning procedure, pursuant to Article
166, paragraph 5, of the Code in relation to the violation
of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

2. The legal framework of the processing carried out
The use of video surveillance systems can
result, depending on the positioning of the

cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, with the principle of transparency which presupposes that "data subjects must always be informed that they are about to enter a surveillance area."

To this end, the data controller must therefore place suitable informative signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance, published on the Authority's website). Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that "Regarding video surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while further mandatory details can be provided by other means (second level). The guidelines also provide that "Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations." The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) "to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary."

The processing of personal data carried out by the company through the video surveillance system is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

3. The outcome of the investigation and the sanctioning procedure. Based on the findings made, it emerged that the video surveillance system installed at the commercial establishment named "Mushtaq Rubina Kebabish" located in Ancona, Via Marconi 51/A was active and functioning and that no sign bearing the information required by Article 13 of the Regulation had been posted. In this case, it is therefore proven that a processing of personal data has been carried out, by means of a video surveillance system, in the absence of the prescribed information. Such conduct is in contrast with what is established by Article 13 of the Regulation, according to

which the data controller is required to provide the data subject with all the information regarding the essential characteristics of the processing.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

****The processing of personal data carried out by the individual enterprise is therefore unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) (principle of transparency) and 13 (information) of the Regulation. The violation established in the terms of the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation).****

****5. Order of injunction.****

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary penalty provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary penalty and its quantification, considering that the penalty must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;
- the absence of specific previous violations against the aforementioned individual enterprise relating to breaches of data protection regulations;
- the circumstance that the individual enterprise, as the data controller, did not cooperate with the Authority during the proceedings nor demonstrated compliance with the legal obligation.

It is also considered that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this specific case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the penalty (Article 83, paragraph 1, of the Regulation).

By reason of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary penalty at €2,000.00 (two thousand) for the violation of Articles 5 and 13 of the Regulation.

In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

****ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY****

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by the individual enterprise Mushtaq Rubina, VAT No. 02724560426, based in Ancona, Via Marconi 51/A through the use of the video surveillance system installed at the commercial establishment named "Mushtaq Rubina Kebabish," which it is found to manage, in the

terms outlined in the reasoning, for the violation of Articles 5 and 13 of the Regulation;

****ORDERS****

the individual enterprise to pay the sum of €2,000.00 (two thousand) as an administrative monetary penalty for the violations indicated in this provision;

****INSTRUCTS****

therefore the same individual enterprise to pay the sum of €2,000.00 (two thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed penalty within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this provision be communicated and that adequate documented feedback be provided pursuant to Article 157 of the Code, within 30 days from the date of notification of this provision; any failure to respond may result in the application of the administrative penalty provided for by Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 7, 2023

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei